

**Order on I.A. filed Under Sec.151 of C.P.C.
by the Judgment-debtor on 1.8.2023**

The counsel for Judgment Debtor has filed this application under Section 151 of C.P.C. to recall the delivery warrant Dt.16.12.2023 issued by this Court.

2. In the affidavit annexed to the application, the Judgment-debtor has sworn to the facts that the Decree-holders have filed this Execution Petition for recovery of arrears of rent and also for issuance of delivery warrant. Accordingly this Court has issued delivery warrant on 16.12.2023 in respect of schedule property which is in his possession. In fact as per the agreed terms of the compromise petition, he has got time to pay the arrears of rent till 10th November 2023. He is ready to comply with the terms of the Undertaking given by him in the compromise decree within reasonable time, whereas this Court has issued delivery warrant Dt.16.12.2023. He has already transferred a sum of Rs.13,00,000/- to the account of the Decree-holders by way of RTGS, out of Rs.20 lakhs payable under the compromise decree

towards arrears of rent. He has also transferred another sum of Rs.2 lakhs to the account of the Decree-holders. Hence Rs.5 lakhs is the only due amount to be paid by him to the Decree-holders as per the decree. He had paid Rs.5 lakhs as advance at the time of inception of tenancy, which is still in the hands of the Decree-holders and hence the question of he leaving the premises without paying the arrears, does not arise. If the Decree-holders would get the delivery warrant executed, he will be put to irreparable loss and injury. Hence it is appropriate to recall the delivery warrant issued by this Court.

3. The learned counsel for the Decree-holder has orally objected the said application and his submission was taken on record.

4. Heard both sides on the said application.

5. As per the contention of the learned counsel for the Judgment-debtor, as per the terms and conditions of the compromise decree, the Judgment-debtor had to pay totally a sum of Rs.20 lakhs towards arrears of rent and the same is to be paid on or before

10.8.2023, accordingly he has already paid a total sum of Rs.15,00,000/- through RTGS to the bank account of the Decree-holders and only Rs.5 lakhs is due towards arrears of rent as per the decree. He also stated that the Judgment-debtor had paid a sum of Rs.5 lakhs as advance at the time of inception of tenancy which is still in the hands of the Decree-holders, hence he is not in arrears of rent.

6. It is to be noted that it is admitted by the Judgment-debtor himself that as per the terms and conditions of the decree, he had to pay the arrears of rent due by him to the Decree-holders on or before 10.8.2023. On perusal of the compromise petition available on record, it reveals that both Decree-holders and Judgment-debtor have filed compromise petition in O.S.No.1366/2021.

7. As per Condition No.3 of the said compromise petition, the Plaintiffs/Decree-holders have agreed that the Defendant/Judgment-debtor shall pay Rs.20 lakhs towards arrears of rent from December 2019 till January 2023 in six monthly

installments with single default clause commencing from 10th of each calender month. As per condition No.4 of said compromise petition, the Decree-holders/ Plaintiffs have granted 1½ years time from the date of compromise to the Defendant/ Judgment-debtor to vacate and handover vacant possession of the suit schedule premises. Therefore as per the above said conditions of the compromise petition, the Judgment-debtor shall pay the entire arrears of rent of Rs.20 lakhs by the end of January 2023 in six monthly installments and he ought to have vacate and handover the vacant possession of the suit schedule premises within 1½ years from the date of filing of compromise petition.

8. It is also stated at para 6 of the compromise petition that the Plaintiffs/Decree-holders have agreed to refund the security deposit of Rs.5 lakhs to the Defendant/ Judgment-debtor at the time of taking over the vacant possession of the schedule property. As per the version of Judgment-debtor as stated in the application,

he had paid Rs.5 lakhs towards advance amount and took possession of the schedule premises as tenant. But as per the terms of the said compromise petition he is entitled for refund of said security deposit of Rs.5 lakhs at the time of vacating the premises and handing over vacant possession. Hence it is clear that the Judgment-debtor ought to have paid the arrears of rent as per the terms and conditions of the compromise petition entered into between both the parties, on or before 10.8.2023. By considering the facts and circumstances of the case and also for the aforesaid reasons, I am of the opinion that the present application filed by the Judgment-debtor for recalling the delivery warrant issued by this Court is not tenable and hence liable to be dismissed. Hence **the application filed by the Judgment-debtor under Section 151 of C.P.C. to recall the delivery warrant Dt.16.12.2023 issued by this Court is hereby rejected.**

9. The counsel for the Decree-holders has also paid process Fee. Hence **issue delivery warrant against the Judgment-**

**debtor with respect to suit schedule
premises returnable by 16.3.2024.**

XXXVIII ACC & SJ,
Bengaluru City.